

SENATE BILL 2651

By Lowe

AN ACT to amend Tennessee Code Annotated, Section 68-211-816, relative to noncompliance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-211-816, is amended by deleting subsection (a) and substituting:

(a) A county or municipal solid waste region is noncompliant if:

(1) It fails to submit an adequate plan in a timely fashion;

(2) The commissioner does not approve a plan submitted by the county or municipal solid waste region;

(3) It fails to implement an approved plan as determined by the commissioner; or

(4) It fails to comply with this part.

(b) The commissioner shall impose the following sanctions, as appropriate, on a noncompliant county or municipal solid waste region:

(1) On the first instance of noncompliance, the commissioner shall issue a letter of warning to the noncompliant county or municipal solid waste region indicating the reasons for noncompliance, the sequence of graduated sanctions for noncompliance, and an offer of technical assistance to remedy the causes of noncompliance;

(2)

(A) Noncompliance must be resolved as soon as possible. If noncompliance continues for thirty (30) days after receipt of a warning letter, the noncomplying county or municipal solid waste region is

ineligible to receive funds from the solid waste management fund, unless the commissioner states in writing that, due to particular circumstances, more time to become compliant is appropriate; and

(B) A noncompliant county or municipal solid waste region that fails to meet the requirements of subdivision (a)(2)(A) and becomes ineligible to receive funds from the solid waste management fund, including, but not limited to, grant funds or rebates, is prohibited from receiving any grant funds administered by a division or program of the department until the noncompliance is resolved;

(3) If noncompliance continues for sixty (60) days after receipt of the warning letter, then, in addition to any other penalty imposed by law, the commissioner may impose a civil penalty of not more than five thousand dollars (\$5,000) for each day of noncompliance beyond the sixty-day period; and

(4) The state solid waste management plan, as set forth in § 68-211-603, must serve as the solid waste management plan for a noncompliant county or municipal solid waste region, including for purposes of § 68-211-814(b)(2)(B), until noncompliance is resolved.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.